

10.	30-2025-01500072 Salmeron vs. Audicus, Inc	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Answers to Form Interrogatories 5. Motion to Compel Answers to Form Interrogatories 6. Motion to Compel Answers to Form Interrogatories 7. Motion to Compel Answers to Form Interrogatories 8. Motion to Compel Answers to Form Interrogatories 9. Motion to Compel Arbitration 10. Motion to Deem Facts Admitted 11. Motion to Deem Facts Admitted 12. Order to Show Cause re: Appointment of Discovery Referee Defendants Audicus, Inc. and Andre Sequin (“Defendants”) move to compel arbitration. Plaintiff Maria Medrano Salmeron (“Plaintiff”) opposes the motion. In compelling arbitration, “the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165; Cal. Rules of Court, rule 3.1330.) “The moving party can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature.” (<i>Ibid.</i> [internal citations omitted].) Importantly, “[f]or this step, ‘it is not necessary to follow the normal procedures of document authentication.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165 [citing <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218].) In fact, the moving party can meet its burden of establishing “evidence of a written agreement to arbitrate the controversy” by (1) “attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature” or (2) “setting forth the agreement’s provisions in the motion.” (<i>Ibid.</i>) “If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165.) “If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165.) “The opposing party can do this in several ways.” (<i>Ibid.</i>) For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (<i>Ibid.</i> [citing <i>Bannister, supra</i>, 64 Cal.App.5th at p. 546, 279 Cal.Rptr.3d 112 [never saw or signed agreement]; <i>Fabian v. Renovate America, Inc.</i> (2019) 42 Cal.App.5th 1062, 1065, 255 Cal.Rptr.3d 695 (<i>Fabian</i>) [never given or signed contract]; <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1054, 201 Cal.Rptr.3d 318 (<i>Espejo</i>) [did not recall seeing or signing document]; <i>Ruiz v. Moss Bros. Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 846, 181 Cal.Rptr.3d 781 (<i>Ruiz</i>) [did not recall signing agreement].) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.”
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(*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) “The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (*Id.*, 165–166.)

A. Plaintiff’s Signature is sufficiently Authenticated

Here, the Court finds that Defendant has sufficiently authenticated Plaintiff’s signature on the Worksite Employee Acknowledgment and Arbitration Clause contained therein pursuant to the holdings in *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843–844, *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062, and the other related case law cited by the parties.

For example, Christian Sjulsen, who is the “Head of Consumer” and testified that he is “familiar with Audicus’ operations, and Plaintiff’s employment with Audicus, including Audicus’ onboarding practices with Justworks.” (ROA 147, Declaration of Christian Sjulsen, ¶ 4.) Sjulsen also testified that in his position, he has “he access to personnel records, which are maintained in the ordinary course of business. I reviewed Plaintiff’s personnel file, as well as the Arbitration Agreement signed by Plaintiff on or about July 11, 2023 with Justworks.” (ROA 147, Declaration of Christian Sjulsen, ¶ 7.)

Then, Kyle Johnson testified the process pursuant to which Plaintiff would sign the agreement at issue. (ROA 148, Declaration of Kyle Johnson, ¶¶ 2- 6.) Johnson stated that each employee creates an individual employee account with JustWorks. JustWorks is a third party hired to conduct HR procedures, such as onboarding and tax paperwork. Once an employee creates an individual employee account with JustWorks, the employee is prompted to sign the Employee Worksite Acknowledgment Agreement. When the employee signs documents on JustWorks, their name, the date, and the IP address at which the signature was made is recorded on JustWorks and is stored with Just Works.

JustWorks also contains the employee’s wage statements and personnel file documents, including tax documents (such as a W-2), benefit plan documents, and others. Importantly, all of the documents that Plaintiff signed or that pertain to Plaintiff are stored on her JustWorks account and are accessible to her at her discretion. Given the above, the Court finds that the electronic signature has been sufficiently authenticated such that the electronic signature was an act of Plaintiff.

B. The Worksite Employee Acknowledgment and Arbitration Clause contained therein supersedes the Offer of Employment

Next, the Court finds that the Worksite Employee Acknowledgment and Arbitration Clause contained therein supersedes the Offer of Employment and therefore, contrary to Plaintiff’s argument, the Offer of Employment does not govern. The Arbitration Clause contained in the Worksite Employee Acknowledgment expressly states

“This is the entire agreement between you, on the one hand, and Worksite Employer and/or Justworks, on the other hand, regarding dispute resolution, and this arbitration agreement supersedes any and all prior agreements regarding these issues. Any agreement contrary to the foregoing must be entered into, in writing, signed by you, the authorized representative of Worksite Employer and the CEO of Justworks.”

	This document was signed by Plaintiff on July 11, 2023 at 12:59 p.m. Thus, the Acknowledgment with the Arbitration Clause was signed after Plaintiff signed the offer of employment letter and supersedes any agreement to resolve disputes in the Court as Plaintiff argues. There is no ambiguity in the term that expressly states that the Worksite Employee Acknowledgment supersedes any prior agreements. C. Plaintiff Assented to the Arbitration Clause The Court finds that Plaintiff assented to the Arbitration Agreement Clause. “Under basic principles of California contract law, ‘[m]utual assent, or consent, of the parties ‘is essential to the existence of a contract’ (Civ. Code, § 1550; see also Civ. Code, § 1565), and ‘[c]onsent is not mutual, unless the parties all agree upon the same thing in the same sense’ (Civ. Code, § 1580).” (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293–1294, <i>review denied</i> (Aug. 28, 2024).) “ ‘Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings.’ ” (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293–1294, <i>review denied</i> (Aug. 28, 2024).) “The parties’ outward manifestations must show that the parties all agreed ‘upon the same thing in the same sense.’ ” (<i>Ibid.</i>) “If there is no evidence establishing a manifestation of assent to the ‘same thing’ by both parties, then there is no mutual consent to contract and no contract formation.’ ” (<i>Ibid.</i>) “Further, California law is clear—an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he [or she] was unaware, contained in a document whose contractual nature is not obvious.” (<i>Id.</i> [internal quotations omitted].) “This principle of knowing consent applies with particular force to provisions for arbitration’ [citation], including arbitration’ provisions contained in contracts purportedly formed over the internet.” (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293–1294, <i>review denied</i> (Aug. 28, 2024) [internal quotations omitted].) “In the context of an internet transaction, in the absence of actual notice, a manifestation of assent may be inferred from the consumer’s actions on the website—including, for example, checking boxes and clicking buttons—but any such action must indicate the parties’ assent to the <i>same thing</i>, which occurs only when the website puts the consumer on constructive notice of the contractual terms.” (<i>Ibid.</i>) “Thus, in order to establish mutual assent for the valid formation of an internet contract, a provider must first establish the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting <i>to those very terms</i> when checking a box or clicking on a button.” (<i>Ibid.</i>) “And the full context of any transaction is critical to determining whether any particular notice is sufficient to put a consumer on inquiry notice of contractual terms contained on a separate, hyperlinked page.” (<i>Ibid.</i>) After reviewing the supplemental declarations, the Court finds that Plaintiff assented to the Arbitration Clause. Defendant established that the arbitration terms were presented to Plaintiff such that it was apparent that Plaintiff was assenting to the Arbitration Clause. In particular, Defendant provided evidence via the declaration of Kyle Johnson the following: “To complete each document, including the Acknowledgment, the employee must click on the listed document from the onboarding dashboard, which opens the document in a dedicated viewer within the platform. The system does not allow the employee to sign or
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		complete the document from the dashboard view alone; the employee must first open the document itself.” (ROA, Declaration of Kyle Johnson, ¶ 7.) This testimony, along with the other evidence Defendant submitted, establishes the requisite notice to find that Plaintiff assented to the Arbitration Clause. D. The Arbitration Clause is Enforceable pursuant to <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83 The Court finds that the Arbitration Clause is binding and enforceable. The Court finds that the Arbitration Clause meets the requirements set forth in <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102, which holds that an <u>employment</u> arbitration agreement is lawful and therefore enforceable if it “(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum.” (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102.) Given the above, the Motion to Compel Arbitration is GRANTED and the action is STAYED. The Court finds that the declaration of Kyle Johnson and the testimony contain therein are admissible. Plaintiff’s objections to such testimony is OVERRULED. The Court sets an ADR Review hearing for <u>February 11, 2027 at 10:30 am in C34</u>. The <u>Discovery Motions</u> scheduled are OFF CALENDAR AS MOOT given the Court’s order compelling arbitration. Moving party to give notice.
11.	30-2024-01390718 Chavez vs. General Motors, LLC	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication Defendant General Motors LLC (“Defendant”) filed a motion for summary judgment as to all five causes of action alleged in the Complaint, which includes the: (1) first cause of action for violation of Civil Code section 1793.2(d), (2) second cause of action for violation of Civil Code section 1793.2(b), (3) third cause of action for violation of Civil Code section 1793.2(a)(3), (4) fourth cause of action for breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5, and (5) fifth cause of action for violation of the Magnuson-Moss Warranty Act. Plaintiff Ernesto Everardo Chavez (“Plaintiff”) opposed the motion. The Motion is CONTINUED TO August 20, 2026 at 1:30pm. <i>The Court is unable to read the Exhibit A to the motion for summary judgment</i>, which is the Dealer’s Reassignment of Title and Retail Purchase Agreement showing the sale of a used model 2020 Chevrolet Silverado 1500, VIN: 3GCPYBEH0LG401310 (the